Deterring Arrival: Asylum Policy in Australia and the United States

At the end of 2025, 41.6 million people worldwide were refugees, and a further 9 million were awaiting a decision on an asylum claim (United Nations High Commissioner for Refugees [UNHCR], 2026a). Of these, around 116,000 were in Australia and almost 4.2 million in the United States (U.S.), where most were still waiting on that decision (UNHCR, 2026b). The two countries are both bound by the obligations of the 1951 Refugee Convention to protect refugees who reach their territory; however, asylum has become a politically salient issue in each, and both have responded with policies of deterrence, hyper-territoriality and extraterritorial detention designed to circumvent those obligations (Ghezelbash, 2020, p. 479). The U.S. and Australia have built similar architectures on the back of comparable moral panics and have significantly reduced the number of asylum seekers arriving. Differences in the material forms of their systems are largely attributable to geography, with Australia relying primarily on offshore detention, and the United States utilising land buffers on its southern border. They also differ in the political and institutional durability of their policies; Australia has, since 2012, settled into a bipartisan consensus, whereas access to asylum in the United States swings between administrations and is often contested in the courts.

The asylum policies of Australia and the United States take similar approaches, with both countries using remote migration control to keep asylum seekers from reaching territory where they are entitled to protection. C. A. Martin (2025) argues ‘the Australian model’ is “designed to limit asylum seeker boat arrivals” (p. 3), visible in policies such as the 2001 Pacific Solution, or the ongoing Operation Sovereign Borders from 2013. In the U.S., Proclamation No. 10888 bars asylum applications from anyone who crosses the southern land border outside designated ports of entry (Kerwin et al., 2026, p. 455). In both cases, the objective is to prevent and restrict the arrival of asylum seekers into sovereign territory.

FitzGerald (2020) notes that both states push their migration controls extraterritorially, through checks on air travel, interception at sea and holding sites in other countries (p. 9); meanwhile, they "ratchet up controls at a finely calibrated border line in a process of hyper-territorialisation" (p. 4), such as in 2019 when U.S. agents stood on the Mexican border "to prevent asylum seekers from setting their toe on U.S. soil" (p. 7). Asylum seekers are entitled to certain protections and rights upon arriving at the destination country; hyper-territorialisation and extraterritorial migration control allow Australia and the United States to skirt these protections, heavily limiting the available recourse for potential refugees. An explanation for the heavy resemblance of the two policies is provided by Ghezelbash (2020), who notes that Australia "closely modeled its asylum deterrent measures" on earlier U.S. policies (p. 491). Beyond similar approaches, the harsh stances of both the U.S. and Australia have developed out of similar moral panics.

The policies of both countries are a response to the wishes of voter bases afraid of asylum seekers and refugees; however, these fears have been exaggerated and stoked into a moral panic for political gain. Ghezelbash (2020) argues that wealthy democracies have come to view asylum seekers as a threat to their security and way of life (p. 483), but that "these fears are being exacerbated as a result of dog-whistle politics" (p. 484). G. Martin (2015) argues that a moral panic can be seen when a social reaction is far greater than the perceived threat that provoked it (p. 309), noting that anti-'boat people' campaigns in Australia "have all the hallmarks of a classic moral panic" (p. 304). The same pattern is evident in the U.S.; according to Massey et al. (2016), "border enforcement emerged as a policy response to a moral panic about the perceived threat of Latino immigration … propounded by self-interested bureaucrats, politicians, and pundits" (p. 1557), who called for harsher measures despite net undocumented migration from 2008 being at or below zero (p. 1563). Moral panic can therefore help to explain why the two countries have such similar asylum policies. Once

asylum seekers have been cast as threats, politicians in both nations are incentivised to prevent arrivals rather than process claims. It also explains why both governments measure and report their success by the number of arrivals.

By this measure, the asylum policies of the U.S. and Australia have both been highly effective in deterring the arrival of asylum seekers. Southwest border encounters in the U.S. have fallen from nearly 2.5 million in the 2023 fiscal year to fewer than 140,000 in 2026 (U.S. Customs and Border Protection, 2026). According to Kerwin et al. (2026), the Trump administration has made the U.S. look “not worth the journey” and “would likely consider its border policies to be a success” (p. 456). In Australia, boat arrivals dropped from 20,587 in 2013 to none in 2015 (Phillips, 2017), a decrease that Missbach and Palmer (2020) attribute predominantly to deterrence policies under Operation Sovereign Borders (p. 185). Successfully reducing arrival numbers, however, has come at enormous humanitarian cost. Barnes (2022) argues that deterrence has been prioritised over human rights (p. 1508) and that it has resulted in the inhumane treatment and torture of refugees (p. 1509). In Australia, this harm appears to have been intentional: “there is sufficient evidence to suggest that these conditions were part of a deliberate campaign to inflict pain and suffering to deter future boat arrivals to Australia” (Barnes, 2022, p. 1512). A similar pattern is visible in the U.S., where Martínez et al. (2024) found that Title 42 expulsions between 2020 and 2023 placed migrants at greater risk and led to many repeat crossing attempts, with recorded migrant deaths in southern Arizona rising by 48 percent (p. 182). In both countries, the fall in arrivals has therefore been achieved by exposing asylum seekers to greater harm, whether in offshore detention or in repeated attempts to cross the southern U.S. border. Judged by arrivals, deterrence has been effective; however, judged by the protection both states are obliged to provide under the Refugee Convention, it has failed.

Whilst the U.S. and Australia share similar objectives, drivers and outcomes in their asylum policies, the two systems also differ in several important respects. The most materially evident of these is the form each system takes, which is shaped largely by geography. As an island nation, Australia is able to intercept asylum seekers at sea and transfer them elsewhere; FitzGerald (2020) notes that the Australian model is unusual because "processing and long detention takes place in another sovereign state through which asylum seekers did not pass before interception" (p. 10). With a land border to its south, the U.S. cannot hold asylum seekers offshore in the same way. Chacko and Price (2026) instead describe the U.S. border as elastic, contracting inward through securitisation within its territory while expanding outward to externalise migration control to neighbouring countries through legal agreements (p. 1429). Under the Migrant Protection Protocols, for example, asylum seekers were returned to Mexico while their claims were decided (Ghezelbash, 2020, p. 505). Despite these differences in form, both states rely on remote detention for the same reasons of "opacity and non-accountability" (Ghezelbash, 2020, p. 505), from Australia's former mainland centres at Port Hedland and Woomera (Ghezelbash, 2020, p. 506) to facilities such as "Alligator Alcatraz" in the Florida Everglades under the Trump administration (Kerwin et al., 2026, p. 467). Australia's offshore system also rests on legal measures, not geography alone; reforms introduced in 2012 effectively excised the entire Australian mainland from its migration law, so that asylum seekers arriving anywhere by boat could be transferred to Nauru or Papua New Guinea (Ghezelbash, 2020, p. 493). Geography therefore shapes how each state keeps asylum seekers at a distance, but the decision to do so is a political and legal one.

The two countries also differ in the political durability of their asylum policies. In Australia, deterrence has become a matter of bipartisan consensus. Although the Labor government closed the detention centres on Manus Island and Nauru in 2008, it was Labor that re-established them in 2012, and both major parties and a majority of Australians continue to

support offshore detention despite its controversy (Barnes, 2022, p. 1523). G. Martin (2015) similarly observes that the Coalition's 2013 campaign against boat arrivals largely copied one launched earlier that year by Labor Prime Minister Kevin Rudd, and argues that moral panics over asylum seekers in Australia "are now relatively permanent" (p. 304). In the U.S., by contrast, Chacko and Price (2026) find that asylum policy has "fluctuated erratically and abruptly" over the last decade (p. 1429); unlike its predecessor, the Biden administration created distinct, though mostly temporary, pathways for entry (p. 1438), before the second Trump administration issued a barrage of executive orders aimed at removal and deterrence (p. 1447). This volatility is limited to access to asylum, however. Kerwin et al. (2026) note that U.S. enforcement laws have "enjoyed bipartisan support for at least three decades" (p. 445); what changes between administrations is the availability of lawful routes to asylum, while enforcement of the border itself remains constant.

A further difference lies in the capacity of each country's institutions to check executive power over asylum. Barnes (2022) notes that Australia is the only liberal democracy without a federal bill or charter of human rights, relying instead on parliamentary sovereignty, which has produced "a system of executive dominance that has tied the hands of courts" (p. 1522). Even where the courts have intervened, the government has legislated around them. When the High Court invalidated the 'Malaysian Solution' in 2011, the government amended the law so that a country could be designated for offshore processing whenever the Minister thought it was in the national interest; Ghezelbash (2020) argues that this reaction "laid bare the disingenuous nature" of the government's repeated claims that its policies complied with the Refugee Convention (p. 494). In the U.S., by contrast, the right to seek asylum is protected by statute, and the courts have enforced it against the executive. In July 2025, a district court blocked Proclamation No. 10888 for violating the statutory right of noncitizens to seek asylum, and in April 2026 the D.C. Circuit Court of Appeals held that the executive had no

authority “to deny noncitizens access to statutory protections, including asylum” (Kerwin et al., 2026, p. 455). The government may still appeal to the Supreme Court (Kerwin et al., 2026, p. 456), and these rulings do not prevent future restrictions; nonetheless, they ensure that access to asylum in the U.S. remains contested in a way it is not in Australia, where the executive faces few effective legal constraints.

Australia and the U.S. have developed closely comparable asylum systems. Both use remote migration control to keep asylum seekers from the territory where protection applies, and both have been shaped by moral panics that reward politicians for preventing arrivals. These policies have succeeded in reducing arrivals, but only by exposing asylum seekers to serious harm, at the expense of the protection both states are obliged to provide under the Refugee Convention. The forms the two systems take differ largely because of geography, although their shared reliance on remote detention and Australia’s legal excision of its own mainland show that geography is not the whole explanation. The more consequential differences are political and institutional. Bipartisan consensus and weak judicial oversight have kept Australia’s system largely unchanged since 2012, whereas in the U.S., access to asylum continues to depend on which administration holds office and how the courts rule.

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